

26TRCV00648 26TRCV00648

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CE%2C08%2F06%2F2026

Source SHA-256: e0fcd4471fd9712a6d1ec1533edf576cd6437d7c97dfab7ec79d33644bbe9227

Case Number: 26TRCV00648 Hearing Date: August 6, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

MANDEEP

SAMDHYAN

Plaintiff,

Case No.:

26TRCV00648

vs.

[Tentative]

Granted

AMERICAN

HONDA MOTOR CO. INC.; a California Corporation, and DOES 1-20, Inclusive,

Defendants.

Hearing

Date: August
8, 2026

Moving Parties: Defendant American Honda Motor Company

Responding

Party: Plaintiff Mandeep Samdhyam

HEARING: Motion to Compel

Arbitration

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel

Arbitration.

BACKGROUND

On February 23, 2026, Plaintiff Mandeep Samdhyam filed the Complaint against Defendant American Honda Motor Company alleging causes of action for violations of the Song-Beverly Act.

On July 6, 2026, Defendant filed the Motion to Compel Arbitration.

On July 23, 2026, Plaintiff filed the Opposition.

On July 31, 2026, Defendant filed the Reply.

LEGAL STANDARD

The Federal Arbitration Act (the "FAA") applies in both federal and state courts to contracts evidencing a transaction involving interstate commerce. (9 U.S.C. §§ 1-2; *Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (*Preston v.*

Ferrer (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a "contract evidencing a transaction involving commerce." (Woolfs v. Super. Ct. (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2, "[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

DISCUSSION

The instant case arises out of the purchase of a 2025 Honda Accord, VIN 1HGCY2F77SA075203. The Retail Installment Sale Contract included an arbitration agreement. The warranty booklet included with the car also included an arbitration agreement. Defendant moves to compel arbitration based on the agreement in the warranty booklet.

Agreement to Arbitrate:

"Please note that this new vehicle limited warranty contains an arbitration provision that may affect your legal rights, and you agree that, pursuant to the Arbitration Provision contained in this warranty (beginning on page 6) of this booklet, that either you or American Honda Motor Co., Inc. may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision contained (beginning on page 6) of this new vehicle limited warranty for additional information concerning the agreement to arbitrate ... You and we agree that any dispute arising out of or relating to any aspect of the relationship between you and Honda will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect on the date of delivery of your vehicle to you. This Agreement to Arbitrate includes all claims, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory; claims arising out of your warranty; claims arising before or after this Agreement, such as claims related

to statements about our products; claims about the performance, design of our products, or manufacturing of our products; and claims that are currently the subject of purported class action litigation in which you are not a member of a certified class ... You may opt out of arbitration within 30 days after the date of delivery of your vehicle to you by sending a letter to: Honda's Office of the General Counsel, 1919 Torrance Blvd., Mail Stop CHI-5, Torrance, CA 90501, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding."

(Hurvitz Decl. Exhibit B.)

Existence of Valid Arbitration Agreement and Claims Covered by Arbitration Clause

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence..." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause." (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the

court's discretion, to reach a final determination." (Giuliano, *supra*, 149 Cal.App.4th at p. 1284.)

Plaintiff argues

that Defendant has not carried its burden to prove any agreement to arbitrate, contending that the arbitration clause appears only in Defendant's own unsigned warranty booklet and that Defendant's evidence shows only that the booklet exists on its website, not that Plaintiff ever received, saw, or assented to it. Plaintiff attempts to distinguish Kostandian on the ground that the manufacturer there produced a signed delivery acknowledgment confirming receipt of the warranty materials, whereas Defendant has produced no comparable evidence and so has not made the *prima facie* showing needed to shift any burden. (*Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, 876.)

Plaintiff further argues

that the booklet's opt-out and deemed-acceptance language cannot substitute for assent, because silence is not acceptance of an offer the consumer never saw, and acceptance by conduct presupposes knowledge of the offer. Plaintiff contends that, even if the booklet were an agreement, Ford forecloses Defendant's equitable-estoppel theory because Song-Beverly claims arise from a statutory scheme separate from any contract and are not intimately founded in or intertwined with it. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133-1138.)

In reply, Defendant

argues that it satisfied its initial burden under the governing three-step framework by attaching the 2025 Warranty Booklet, quoting the arbitration provisions verbatim, and alleging the agreement's existence and Plaintiff's refusal to arbitrate, with no need to authenticate the document at that stage. Defendant contends this is the same showing held sufficient in *Kostandian* and that the case imposed no signed-delivery-acknowledgment prerequisite to shifting the burden. (*Kostandian*, *supra*, 120 Cal.App.5th 872, 883.) Defendant argues the burden then shifted to Plaintiff, who produced no declaration or other admissible evidence that he never received or saw the Booklet and instead relied on attorney argument, which is not evidence.

"The burden of

persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a

statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) However, the burden is a three-step framework. “First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (Ibid.) “For this step, it is not necessary to follow the normal procedures of document authentication.” (Ibid.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Ibid.) “The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

Last, “if the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.)

In Kostandian v. American Honda Motor Co., Inc. (2026) 120 Cal.App.5th 872, the Court found that the defendant met its initial burden by presenting a copy of the warranty booklet, reciting its terms verbatim, and providing the necessary allegations, which shifted the burden to the plaintiff, who then produced no evidence. (Id. at 882.) While the Court mentioned the signed delivery sheet, it was not the basis for its finding that the defendant had met its initial burden. (Ibid.)

Here, Defendant has provided the warranty booklet included with the car that included the arbitration agreement. Defendant can meet its initial burden by merely reciting the terms of the arbitration agreement. (Gamboa, supra, 72 Cal.App.5th 158, 165.) Thus, while there was a signed delivery sheet in Kostandian, one is not required for Defendant to pass its initial burden. (Kostandian, supra, 120

Cal.App.5th 872, 882.) Thus, the Court finds that Defendant has met its initial burden. In response, Plaintiff has provided no evidence showing that he did not receive the arbitration agreement, as Plaintiff has provided no declaration or documents. Thus, the lack of a signed delivery receipt does not become an issue. Furthermore, Plaintiff attempts to rely on *Knutson v. Sirius XM Radio Inc.* (9th Cir. 2014) 771 F.3d 559. In *Knutson*, the Court denied the motion to compel arbitration because the warranty booklet wasn't delivered until a month after the car's purchase, and the plaintiff had no reason to know he had any contractual relationship with SiriusXM Radio after purchasing a car from Toyota. (*Knutson*, supra, 771 F.3d 559, 562, 566; *Kostandian*, supra, 120 Cal.App.5th 872, 884.) Here, however, Plaintiff has not shown that the warranty booklet was not delivered with the car, and Plaintiff had reason to know he was entering into a contract with Honda when he bought a Honda car.

Last, Plaintiff's Ford Warranty Cases argument is also immaterial, as Ford Warranty Cases concerned a manufacturer trying to enforce the dealer's sales-contract arbitration clause as a non-signatory through equitable estoppel, whereas here Defendant enforces its own direct warranty-booklet agreement. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133-1138.)

Therefore, the Court grants the Motion to Compel Arbitration.